

BEFORE THE FEDERAL COMMUNICATIONS COMMISSION

Washington, D.C. 20554

In the Matter of: Space Exploration Holdings, LLC Application for Authority to Launch and Operate The SpaceX Orbital Data Center System File No. SAT-LOA-20260108-00016 Call Sign S00798

SUPPLEMENT TO PETITION TO DENY - CORRECTED VERSION: to include Certificate of Service

The Petitioner, William Stewart, hereby submits this Supplement to the Petition to Deny (filed Feb 12, 2026, PC0107515) to provide the Commission with critical new evidence regarding the Applicant's request for a waiver of **47 C.F.R. §§ 25.156(d) and 25.157**.

I. ABSENCE OF "SPECIAL CIRCUMSTANCES"

The Applicant argues that its request for 1,000,000 satellites represents a "unique" and "first-of-its-kind" technology that justifies bypassing the standard Processing Round requirements. This claim is factually incorrect.

1. **Prior Demonstration:** On **November 2, 2025**, Starcloud, Inc. (Redmond, WA) successfully launched the **Starcloud-1** satellite, carrying an **NVIDIA H100 GPU**.
2. **Proven Performance:** In December 2025, Starcloud-1 successfully performed on-orbit inference of the **Google Gemma** model and trained **NanoGPT**.
3. **Direct Competition:** On **February 4, 2026**, Starcloud, Inc. filed its own application for an 88,000-satellite orbital data center constellation.

Because a competitor has already demonstrated the technology and filed a rival application, the Applicant's system is neither "unique" nor "unprecedented." Therefore, no "special circumstances" exist to justify a waiver of the Commission's competitive processing rules.

II. ACCELERATING PUBLIC CONCERN

Since the initial filing of this Petition, public opposition to the Applicant's unmanaged 1,000,000-satellite deployment has grown. As of February 24, 2026, my petition at change.org has several formal supporters, from across the aerospace, governmental, and academic sectors, including:

- **Luc Descôteaux**, Full Professor, Université de Montréal.
- **Luis Alberto Perez Quintero**, Research Scientist, McGill University / Charles River Laboratories.

- **David Déry**, Infrastructure & Telecommunications Professional.
- **Stéphan (Serge) Déry**, President & CEO of Canada Lands Company; former Assistant Deputy Minister, Public Services and Procurement Canada.
- **Jason Clark**, Senior Manager of Propulsion Test Engineering at Relativity Space (a direct orbital competitor).
- **Ray Leonard (Davis)**, award-winning space journalist for *Space.com* and *Scientific American*.

The diversity and professional caliber of these signatories underscore that the risk of orbital debris and "Kessler Syndrome" is a matter of significant public interest that cannot be waived for the convenience of a single commercial entity.

III. CONCLUSION

The Petitioner respectfully requests that the Commission deny the requested waivers of Sections 25.156(d) and 25.157 and require the Applicant to participate in a standard Processing Round alongside other orbital data center applicants to ensure fair competition and orbital safety.

Respectfully submitted,

/s/ William Stewart Dated: February 24, 2026

CERTIFICATE OF SERVICE

I, **William Stewart**, hereby certify that on this **24th day of February, 2026**, I caused a true and correct copy of the foregoing **Supplement to Petition to Deny** to be served via electronic mail upon the following counsel for the Applicant:

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Respectfully submitted,

/s/ William Stewart Dated: February 24, 2026